

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Murgo	Team: Squad #02	CCRB Case #: 202100512	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 01/16/2021 8:00 PM	Location of Incident: Tillary Street and Gold Street (Outside the 84th Precinct stationhouse)	18 Mo. SOL 7/16/2022	Precinct: 84		
Date/Time CV Reported Sun, 01/24/2021 3:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/24/2021 3:44 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jesse Trap	10734	960033	090 PCT
2. CPT Adeel Rana	00000	935565	084 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ever Cruz	09420	961712	090 PCT
2. PO Tyrell Warburton	00897	949782	SRG 2
3. LT Michael Scally	00000	948132	DBBS
4. PO Harvey Rabel	18646	937321	SRG 3
5. PO Willie Peebles	10104	940555	SRG 3
6. PO Mohammed Rahman	01711	964717	067 PCT
7. PO Almutaz Elhindi	27978	969060	063 PCT
8. PO John Przybyszewski	29776	966284	066 PCT
9. PO Michael Mraz	23367	916287	084 PCT
10. LT Darryl Smallwood	00000	939482	084 PCT
11. PO Gregory Viggiani	17853	951394	SRG 04
12. Matthew Kwiecinski		928605	
13. Rudolph Rosado		949910	
14. PO John Garcia	11965	960573	084 PCT
15. PO Michael Guardino	23348	953934	SRG 1
16. PO David Cardona	16573	960324	SRG 04
17. PO Anthony Serrano	15362	943806	SRG 05
18. LT Matthew Manley	00000	949249	SRG 1
19. LT Peter Sotiriou	00000	924515	SRG 3
20. PO Jesus Munet	18370	958965	SRG 3
21. PO Donald Harris	18438	957660	SRG 2
22. PO Richard Carlough	24138	889705	SRG 3
23. PO Ye Aung	22465	957342	SRG 05
24. SGT Esnaidy Cuevas	00409	950256	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
25. PO Diana Schutz	05948	961261	SRG 1
26. PO Leonel Giron	21368	959658	SRG 1
27. SGT Thomas Durkin	01109	906161	CT DIV

Officer(s)	Allegation	Investigator Recommendation
A . PO Jesse Trap	Force: Police Officer Jesse Trap used physical force against § 87(2)(b)	
B . PO Jesse Trap	Force: Police Officer Jesse Trap used physical force against § 87(2)(b)	
C . PO Jesse Trap	Force: Police Officer Jesse Trap used physical force against an individual.	
D . CPT Adeel Rana	Force: Captain Adeel Rana used physical force against § 87(2)(b)	
E . An officer	Discourtesy: An officer spoke discourteously to individuals.	

Case Summary

On January 24, 2021, § 87(2)(b) filed this complaint online via the CCRB's website. On January 27, 2022, while providing a statement for CCRB Case # § 87(2)(b) § 87(2)(b) made allegations that were subsumed into this case.

On January 16, 2021, at approximately 8:00 PM, § 87(2)(b) and § 87(2)(b) were participating in a protest that had come from Barclays Center to the intersection of Tillary Street and Gold Street, near the 84th Precinct stationhouse. Officers, including Police Officer Jesse Trap of the 90th Precinct, crossed a metal barrier to effect an arrest. Altercations between civilians and officers began during this time. Police Officer Trap grabbed the back of § 87(2)(b) jacket as § 87(2)(b) tried to run away (**Allegation A: Force – Physical force** – § 87(2)(g) § 87(2)(b) was knocked down by people around him, after which Police Officer Trap got on top of § 87(2)(b) took hold of his hair, and punched him in the head (**Allegation B: Force – Physical Force** – § 87(2)(g) § 87(2)(b) Police Officer Trap then punched an unidentified individual in the head as well (**Allegation C: Force – Physical Force** – § 87(2)(g) § 87(2)(b) Captain Adeel Rana of the 84th Precinct pursued § 87(2)(b) and, when § 87(2)(b) tripped and fell, got on top of him, took hold of his arms, and placed him in handcuffs (**Allegation D: Force – Physical Force** – § 87(2)(g) § 87(2)(b) During this portion of the incident, an unidentified officer told civilians to “Back the fuck up,” (**Allegation E: Discourtesy – Word** – § 87(2)(g) § 87(2)(b) was not arrested and left the area. § 87(2)(b) was arrested and charged with assaulting a police officer, resisting arrest, obstructing governmental administration, and disorderly conduct (Board Review 75).

The CCRB received 34 body-worn camera (BWC) videos from various officers who were present at the protest that this incident was part of. These videos are found in Board Review 05-38 and summarized in Board Review 39-44. Stationhouse footage from the 84th Precinct stationhouse is found in Board Review 45-48 and summarized in Board Review 49.

Cellphone and other personal recording device videos obtained from social media, some of which show the location of this incident, are found in Board Review 50 and 51 and summarized in Board Review 52. § 87(2)(b) provided several screen captures from social media videos; these are found in Board Review 53-60. He also provided several pictures of his injuries, which are found in Board Review 61-66. § 87(2)(b) additionally provided several videos, which are found in Board Review 67-69 and summarized in Board Review 52. § 87(2)(b) provided videos of the protest at the 84th Precinct stationhouse, found in Board Review 70 and 71 and summarized in Board Review 72.

News articles that cover the protest that this incident was part of are found in Board Review 76-79.

Findings and Recommendations

Allegation (A) Force: Police Officer Jesse Trap used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Jesse Trap used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Jesse Trap used physical force against an individual.

§ 87(2)(b) was interviewed by telephone on February 8, 2021 (Board Review 01). Police Officer Trap was interviewed at the CCRB on November 18, 2021 (Board Review 02). § 87(2)(b) was interviewed by telephone on January 27, 2022 (Board Review 03). Captain Rana was interviewed by the CCRB on April 12, 2022 (Board Review 04).

§ 87(2)(b) testified that, as he stood in the crosswalk at the south side of the intersection of Tillary Street and Gold Street, he saw officers, including Police Officer Trap and Captain Rana, begin pushing through the crowd, pushing protestors who then collided with § 87(2)(b) and screaming to move back. Police Officer Trap pushed a civilian into § 87(2)(b) fell either when the other civilian was pushed into him or when another civilian was hit in the face. He landed on his left side in the street, and then Police Officer Trap jumped onto § 87(2)(b) Police Officer Trap's knees landed on § 87(2)(b) Police Officer Trap used his left hand to grab § 87(2)(b) ponytail and his right hand to strike § 87(2)(b) forehead, possibly twice, towards the right side of § 87(2)(b) forehead near the temple, above the hairline. Another civilian who was on the ground got up while § 87(2)(b) was still on the ground under Police Officer Trap. Police Officer Trap got up and went after this other civilian. § 87(2)(b) believed that Police Officer Trap had meant to pursue the other civilian, instead of § 87(2)(b) when he struck § 87(2)(b)

§ 87(2)(b) testified that he tried to get away from an area where officers were grabbing people but was blocked by officers who used bicycles to shove him back. An officer behind § 87(2)(b) grasped the back of his jacket and attempted to tackle him to the ground, and § 87(2)(b) fell over due to the bicycles.

Screenshots submitted by § 87(2)(b) reportedly taken from social media videos capturing parts of the protest, show Police Officer Trap wearing a dark uniform, as well as a black neck gaiter and a black beanie with a white Under Armor logo on it (Board Review 55, 56). His shield number is visible in several of the photos.

The video captured by Twitter user § 87(2)(b) (Board Review 50) shows an officer matching this description pursuing § 87(2)(b) and holding onto the back of his jacket, as § 87(2)(b) pushes past other civilians (including § 87(2)(b) and their bicycles. The civilians that § 87(2)(b) runs into (including § 87(2)(b) appear to be attempting to move away. At approximately 0:02 in the video, Police Officer Trap loses his hold on § 87(2)(b) jacket, then swings at and makes contact with the head of a white civilian with long brown hair, who appears to be § 87(2)(b) (see Board Review 58 for a screenshot submitted by § 87(2)(b) showing himself in the video, as well as Board Review 89 for a screenshot of Police Officer Trap's fist apparently meeting § 87(2)(b) head). At 0:03, Police Officer Trap steps back, makes a fist, and takes a few sideways shuffling steps towards the civilians while winding up his fist behind himself. He takes a few steps forward into a small group of civilians, into which § 87(2)(b) fell (see Board Review 59 for another screenshot submitted by § 87(2)(b) showing himself on the ground here). At approximately 0:06 in the video, Police Officer Trap steps into this group of civilians on the ground. He punches down towards § 87(2)(b) at least once, lands on his knees, and then punches another white male civilian with long hair in the back of the head as this other civilian gets up and attempts to flee. At approximately 0:10, Police Officer Trap gets up slightly, moves after this other white male civilian, and appears to tackle that other civilian to the ground.

Several civilians were arrested during the protest that encompassed this incident and their related arrest photos and Threat, Resistance, and Injury (TRI) reports (Board Review 80-87) were obtained. Based on the totality of the information contained within these, the investigation was able to identify § 87(2)(b) as the individual whom Police Officer Trap grabs at the beginning of the video in Board Review 50. The investigation, however, was unable to identify any of the arrested individuals as the individual whom Police Officer Trap appears to punch and tackle after punching § 87(2)(b)

The first video captured by Police Officer Trap's BWC is mostly obscured by Police Officer Trap's jacket at the moments when he first begins engaging with civilians (Board Review 36). At

approximately 0:17, his camera falls off and lands on the ground pointing up. At 0:19, § 87(2)(b) is visible in the upper right corner of the frame, wearing a red mask. Officers pursue him out of the frame. It is impossible to identify many of the officers moving above the camera, as they are all seen from beneath, without identifiable characteristics visible. At 0:25, an officer picks up the camera, and the screen is covered. At 0:59, the sound begins, but it is difficult to tell what is going on as the visual component does not resume until 2:48, when the camera appears to be reattached to someone's chest and is then turned off.

Police Officer Trap testified that he was assigned to a protest detail to protect the 84th Precinct stationhouse. He stood with other officers in a line behind barriers. A female individual spit on an officer next to him, and then the group of civilians on the other side of the barriers began to throw the barriers at the officers. An unknown supervisor instructed Police Officer Trap and other officers to go around the barricade and make an arrest, possibly of the female who spit. When officers attempted to effect an arrest, they were "pelted with objects," including the barricades, as well as punched, kicked, and pulled on by people, while others tried to "wrest away from" the officers. Police Officer Trap may have been hit in the back by an unknown object, though he was not injured. He was pushed to the ground at some point while trying to arrest the female civilian who spit. He did not recall whether he landed on anyone when he fell. He may have pushed civilians while trying to get up to get them away from him, protect his firearm, and to protect the officers next to him, but had no recollection of the civilian or civilians that he pushed. Police Officer Trap did not recall punching any civilians or hitting them with a closed fist. He did not recall seeing any other officers do so. He did not recognize § 87(2)(b) from a photograph provided by § 87(2)(b). Police Officer Trap was assigned an arrest, though he did not recall who assigned the arrest. Police Officer Trap had no recollection of any physical contact with § 87(2)(b) at the scene. He had no recollection of § 87(2)(b) falling or of how he came to fall. He did not recognize himself in a video (Board Review 69) that was submitted by § 87(2)(b). He was unable to tell if he appeared in the video linked to Board Review 50, as the video was not clear. He did not recall if he landed on a civilian and struck them at any point.

§ 87(2)(b) arrest report narrative states that the arresting officer (Police Officer Trap) was informed by Captain Rana that § 87(2)(b) "swung a closed fist" at Captain Rana, then "fled on foot," before § 87(2)(b) "fell to the ground." Captain Rana "then began to arrest § 87(2)(b) while he was flailing his arms and kicking his legs to avoid being arrested." Captain Rana "sustained injuries to his left elbow and right leg during the arrest." The arrest report lists "No force used by any MOS" (Board Review 75).

Patrol Guide Procedure 221-01 instructs officers on the use of force, informing that "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances" (Board Review 73). Factors to consider when determining whether the use of force is reasonable under certain circumstances include actions taken by the subject, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether a subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, and the presence of a hostile crowd or agitators.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The investigation was unable to identify the white male civilian whom Police Officer Trap punched in the back of the head and tackled as an arrestee. § 87(2)(g)

Allegation (D) Force: Captain Adeel Rana used physical force against § 87(2)(b)

§ 87(2)(b) testified that he tried to get away from an area where officers were grabbing people but was blocked by officers who used bicycles to shove him back. An officer behind § 87(2)(b) grasped the back of his jacket and attempted to tackle him to the ground, and § 87(2)(b) fell over due to the bicycles. An officer or officers grabbed § 87(2)(b) arms and placed them behind his back, after which § 87(2)(b) was placed in handcuffs.

Captain Rana testified that he observed § 87(2)(b) “throwing swings at officers,” and that § 87(2)(b) attempted to take a swing at Captain Rana. When Captain Rana attempted to approach § 87(2)(b) § 87(2)(b) seemed to notice him and ran away. Protestors with bicycles used their bicycles to try to block Captain Rana from § 87(2)(b) but caught § 87(2)(b) foot, causing § 87(2)(b) to fall to the ground. Captain Rana went around the bicycles to § 87(2)(b) who was on the ground on his stomach. Captain Rana did not believe that he had made any physical contact with § 87(2)(b) before § 87(2)(b) was on the ground. Captain Rana got on top of § 87(2)(b) and attempted to handcuff § 87(2)(b). He took no other actions while on top of § 87(2)(b) except to attempt to handcuff him. § 87(2)(b) “resisted,” tried to get up, and kicked, flailed his arms at, and pushed back on Captain Rana, causing Captain Rana to strike his knees on the ground. Other officers assisted Captain Rana in placing handcuffs on § 87(2)(b) though Captain Rana did not know who these other officers were.

The video captured by Twitter user § 87(2)(b) (Board Review 50) shows Police Officer Trap pursuing § 87(2)(b) as § 87(2)(b) tries to flee through a cluster of civilians and their bicycles. The handcuffing of § 87(2)(b) is not apparently captured in the video.

Footage from the BWC of Police Officer Michael Guardino (Board Review 07; summarized in Board Review 39) beginning at approximately 0:45, appears to show § 87(2)(b) falling to the ground after pushing past the civilians with bicycles. Captain Rana is briefly visible bringing § 87(2)(b) arms behind his back. No other footage appears to clearly capture § 87(2)(b) arrest.

Patrol Guide Procedure 221-01 instructs officers on the use of force, informing that “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the

circumstances” (Board Review 73). Factors to consider when determining whether the use of force is reasonable under certain circumstances include actions taken by the subject, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether a subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, and the presence of a hostile crowd or agitators.

§ 87(2)(g)

Allegation (E) Discourtesy: An officer spoke discourteously to individuals.

Footage submitted by § 87(2)(b) from a camera he wore during the incident (Board Review 69, summarized in Board Review 52) captures multiple voices saying, “Back up,” beginning at approximately timestamp 0:29, and then a male voice saying, “Back the fuck up” at approximately timestamp 0:38. At the time of this command, people are pushing and shoving, and civilians and officers appear to be physically engaging with one another.

Patrol Guide Procedure 200-02 requires officers to “maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render...services with courtesy and civility” (Board Review 88).

DAO-DCT Case Number 2018-18951 states that “there are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct” (Board Review 74).

The scene captured by § 87(2)(b) footage, with officers and civilians engaging within a crowd of people, in which many people are screaming, yelling, and moving around, § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (Board Review 93).
- § 87(2)(b)
- Captain Rana has been a member of the service for 17 years and has been a subject in two additional CCRB complaints and five additional allegations, none of which were substantiated, § 87(2)(g)
- Police Officer Trap has been a member of the service for six years and has been a subject in 16 additional cases and 48 allegations, of which six were substantiated in two cases:
 - 201800251 involved substantiated allegations of force – pepper spray and force –

physical force against Police Officer Trap. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.

- 201909139 involved substantiated allegations of force – physical force, and three allegations of offensive language – other. The Board recommended charges, and the NYPD has not yet imposed discipline.

- § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 5, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 90).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 2

Investigator:	<u>Rachel Murgio</u>	<u>Inv. Rachel Murgio</u>	<u>13 May 2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>5/13/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date